Precedent memo: Alder Grove Nursery v. Ruiz

Marion County Circuit Court, decided 2023-02-27 - memo by the employment group

1. Holding

The court refused to enforce the non-compete because the employer never sent Ruiz a signed copy of the agreement within 30 days after his employment ended.

2. Facts

Ruiz managed the propagation greenhouse and left on 2022-05-31. The signed copy was first sent with the complaint in 2022-09.

3. Firm position

We represented Ruiz. Ask when, if ever, the signed copy was sent after termination.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.